

Procedure No: EXP202209817 (PS/330/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: On 11/08/22, 30/08/22, and 07/09/22, Mr. A.A.A. (hereinafter, the complainant) submitted several complaint letters to the Spanish Agency for Data Protection.

The complaint was directed against the entity VODAFONE ENABLER ESPAÑA S.L. with CIF: B82896119 (hereinafter, the complained party), for the alleged violation of Law 11/2022, of June 28, General Telecommunications Law (LGTEL).

The facts stated by the complainant in his letters concern the receipt of commercial calls on his mobile line, where the salesperson offers LOWI services.

Along with the complaint letters, the following documentation is attached:

- Certificate proving the registration in the Robinson List of the receiving line ***PHONE.1, belonging to the complainant, since 28/08/19.
- Screenshot proving the receipt of a call on 10/08/22, from the calling line ***PHONE.2. The recording of the call is provided.
- Screenshot proving the receipt of a call on 29/08/22, from the calling line ***PHONE.3.
- Screenshot proving the receipt of a call on 06/09/22, from the calling line ***PHONE.4.

SECOND: On 20/09/22, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the complained party for analysis and to report, within one month, on what was stated in the complaint letter.

THIRD: On 31/10/22, a response to the information request was received by this Agency from Vodafone España, S.A.U., where it confirms, among other matters, the following points:

- It is verified that the complainant's telephone line is listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list.
- It has been confirmed that the telephone numbers from which the commercial calls were made on behalf of LOWI are not listed in its database of numbers associated with the collaborators who make recruitment calls on behalf of Vodafone.

FOURTH: On 02/11/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint submitted, in accordance with Article 65 of the LOPDGDD.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of the GDPR and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following details:

- Through information obtained from the numbering registry on the website of the "Association of Operators for Portability," ***URL.1, which is included in the document "Diligence." It is verified that, as of the investigation date of this file, the operators of the originating numbers of the calls were:
 - o ***PHONE.2 COLT TECHNOLOGY SERVICES, S.A.U.
 - o ***PHONE.5 LEAST COST ROUTING TELECOM, S.L
 - o ***PHONE.4 COLT TECHNOLOGY SERVICES, S.A.U.
- Regarding the complained number ***PHONE.2:
 - o From the response to the requests made, it is concluded that the ownership flow of the telephone line was as follows: COLT TECHNOLOGY SERVICES, S.A.U. -> ACTIVO TI, S.L. -> TECH TELECOM -> COMERCIALIZADORA SYR CENTER 2020, C.A. (Venezuela)
 - o COLT TECHNOLOGY indicates that it has no record of the call, but ACTIVO TI confirms the issuance of this.
 - o On 24-02-2023, a request was sent by international certified mail to COMERCIALIZADORA SYR CENTER 2020, requesting the reason for the calls, of which there is no record of receipt and no response has been received.
- Regarding the complained number ***PHONE.5:
 - o From the response to the requests made, it is concluded that the ownership flow of the telephone

line was: LEAST COST ROUTING TELECOM, S.L. -> NET VOISS, S.A.C -> COMERCIALIZADORA SYR CENTER 2020, C.A. (Venezuela)

o LEAST COST indicates that it has no record of the call, but ORANGE confirms the receipt of this.

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On 02/22/23, a request was sent by international certified mail to COMERCIALIZADORA SYR CENTER 2020, requesting the reason for the calls, with no record of any response.

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Regarding the claimed number ***PHONE.4:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was: COLT TECHNOLOGY SERVICES, S.A.U. -> GLOBTELECOM 2000, S.L -> EXPANDIA Y DESARROLLO IA, EXPANDIA SL.

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On 05/29/23, a request for information was sent to EXPANDIA Y DESARROLLO (EXPANDIA), receiving the following response:

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On 04/27/21, EXPANDIA signed a service contract for the phone ***PHONE.4 with GLOBTELECOM 2000 S.L.

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On 09/06/22 (the date the call occurred), the ownership of the line ***PHONE.4 belongs to EXPANDIA.

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That, on 09/06/22, EXPANDIA made a telephone call from the phone ***PHONE.4 to the claimant's phone ***PHONE.1 for commercial purposes related to the sale of telecommunications.

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In response to a new request for information, EXPANDIA, on 05/24/23, attached the collaboration agreement between EXPANDIA and the company OPTIME 2016, S.L. where, among other things, it can be read:

☐

I.I.- THE COMPANY: Optime 2016 S.L. is a company dedicated to the marketing of products and services of the operator LOWI, as the exclusive wholesaler of the brand appointed by the operator in the provinces of Cáceres, Badajoz, Sevilla, Córdoba, and Huelva. The company has a wide network of collaborators in the described provinces, in which it offers its clients the products marketed by LOWI. In addition to being wholesalers of LOWI, we are authorized distributors of Vodafone in the microenterprise and self-employed segment and specialist channel distributors of Vodafone in the residential segment. (...)”

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II.I – MISSION: The collaborator (EXPANDIA) is the point of sale for marketing and the fundamental element of the LOWI project. Its main mission will be to sell LOWI products and services and

achieve the established objective (...)."

SIXTH: On 08/18/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity VODAFONE ENABLER ESPAÑA S.L. (VODAFONE ESPAÑA), in accordance with the provisions of articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of the Public Administrations (LPACAP), for the alleged infringement of article 48.1.b) of the LGT, (in force when the events occurred on 09/06/22), in relation to art. 23.4 of the LOPDGDD.

In the opening agreement, which was notified on 09/28/23, it was determined that the sanction that could correspond, given the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 5,000 euros (five thousand euros).

SEVENTH: On 10/09/23, a letter was received at this Agency from the entity OPTIME 2016, S.L. indicating, among other issues, the following:

" (...) That OPTIME 2016, S.L. is a microenterprise that was established in August 2016 and whose economic activity is that of an agent of the telecommunications operator Vodafone for the marketing of its products and services under the LOWI brand, forming part of the commercial networks of the operator as an exclusive agent for the sales channel.

The following documents are attached to this letter: - Document No. 1: Exclusive agency contract between Vodafone España, S.A.U. (LOWI) and OPTIME 2016, S.L. 2023/2025."

EIGHTH: On 10/20/23, a letter of allegations regarding the initiation of the file was received at this Agency, in which the following is stated:

PREVIOUS.- Infringements attributed to Vodafone, proven facts, and structure of this letter. The Director of the Agency, by resolution on 08/17/23, agreed to initiate sanctioning procedure PS/330/2023 against Vodafone for the alleged infringement of article 48.1.b) of Law 9/2014, of May 9, General Telecommunications Law (hereinafter, the "LGT"), as well as article 21 of the General Regulation 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (the "GDPR") and article 23.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (the "LOPDGDD"), and whose infringement is classified as "minor" in article 78.11 of the LGT.

The proposed sanction by the Agency is 5,000 euros. As noted in the Opening Agreement, the sanctioning file originates from a complaint filed by the claimant stating that, despite being included in the Robinson list of ADigital and having opposed receiving commercial communications from Vodafone, on September 6, 2022, he received a call from the number ***PHONE.4 on his line ***PHONE.1.

Likewise, when the AEPD, through the information request with reference number EXP202209817, requested my represented party information about this call, it was answered that it was not linked to the

commercial activity of Vodafone or its agencies. However, the Agency, in the course of its investigation, requested information from the holder of the calling line (***PHONE.4), COLT TECHNOLOGY SERVICES, S.A. UNIPERSONAL, who indicated that this line was assigned to GLOBTELECOM 2000, S.L. (hereinafter, "GLOBTELECOM"). GLOBTELECOM informed the AEPD that the calling line was assigned to EXPANDIA DESARROLLO IA EXPANDIA.

Subsequently, the AEPD sent an information request on May 29, 2023, to EXPANDIA requesting information about the calling number, to which EXPANDIA responded with the following: "the ownership of the line ***PHONE.4 belongs to EXPANDIA DESARROLLO IA EXPANDIA S.L.U (...) that, on 06/09/22, EXPANDIA DESARROLLO IA EXPANDIA S.L.U made a phone call from the phone number ***PHONE.4 to the complainant's phone ***PHONE.1 around 19:00 for commercial purposes. After this call, EXPANDIA DESARROLLO IA EXPANDIA S.L.U archived the complainant's phone number as the sale did not materialize and no subsequent calls were made, meaning that this phone number was used only once and made only one call."

Furthermore, EXPANDIA provided a collaboration agreement with the company OPTIME 2016, S.L. (hereinafter "Optime"), which, as stated in the agreement, is "a company dedicated to the marketing of products and services of the operator LOWI, as the exclusive wholesaler of the brand appointed by the operator in the provinces of Cáceres, Badajoz, Sevilla, Córdoba, and Huelva."

As a result, the Agency sent an information request to Optime (which expired by @NOTIFICA on May 25, 2023) requesting the contractual relationship with LOWI. The previous request was reiterated to Optime on June 5, 2023, by certified postal mail, with acknowledgment on 5-6-23, and no response was received from General either. However, due to the lack of cooperation from Optime, the AEPD did not request this contract from my represented party.

For all these reasons, the AEPD only took into account the information provided by Optime's sub-contractor, EXPANDIA, who confirmed that they made the call from the number ***PHONE.6 to the complainant's number ***PHONE.1, but did not demonstrate whether they were authorized by Vodafone to carry out telemarketing activities on its behalf.

It is important to highlight, as will be detailed below, that Optime had in no case been authorized by Vodafone to carry out telemarketing tasks and, therefore, neither had its sub-contractors. As a consequence of this type of practice, it is noteworthy that, prior to the receipt of this Initiation Agreement and just one month after making the call subject to this Initiation Agreement, in October 2022, Optime no longer worked with EXPANDIA, thus blocking its access codes to LOWI's systems due to malpractice, and could not carry out any activity on behalf of LOWI.

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Before outlining the specific reasons why Vodafone believes it has not violated Article 48.1b) of the LGT, it is necessary to define the scope of the debate.

In the following paragraphs, we will list the relevant facts that must be taken into account when deciding on the imposition of the sanction on Vodafone.

According to the background that led to the Initiation Agreement:

1. The facts refer to a single interested party (the Claimant) who, at the time of the events, is not a customer of Vodafone.
2. The Initiation Agreement is based solely on the call made by the number ***TELÉFONO.4 to the claimant's number, regarding which this Agency sent a request for information to Vodafone. However, Vodafone found no evidence linking the aforementioned number with the commercial activity carried out by its entity or by any of its collaborating Agencies. Despite this, during the investigation conducted by the AEPD, it was verified that the calling number was being used by Optime's sub-collaborator, EXPANDIA.

3. The AEPD issued a request for information to EXPANDIA, which confirmed the making of the call and that Optime was a collaborator of LOWI. Furthermore, EXPANDIA provided Document number 2 of its response to the AEPD's request for information (page 313 of the file), the collaboration agreement between Optime and its entity, which includes one of its points of sale A.A.A. with CIF B90314808, located at Calle ***DIRECCIÓN.1 EXPANDIA SL.

Despite this, the Agency did not request the contract between Optime and Vodafone at any time, relying solely on the information provided by EXPANDIA for the preparation of this Initiation Agreement and not considering whether the terms and conditions governing the contractual relationship between Optime and Vodafone allowed telemarketing activities by the collaborator Optime and its sub-collaborators, directly opening a sanctioning procedure.

4. Optime and Vodafone had an Alternative Channel Agency Contract, signed on August 29, 2022, with a validity period established between September 1, 2022, and March 31, 2023, thus applicable at the time of the call made on September 6, 2022. In this contract, in its second clause, object of the contract, it is established that Vodafone expressly prohibits the possibility of carrying out telemarketing or teleappointment activities by Optime, specifically stating in its clause 2.1 that, "the commercial promotion and the conclusion of acts and commercial operations carried out by the AGENT and/or by its sub-agents in any form other than in-person (telephone, telemarketing, electronic communication, others...) are expressly excluded from the scope of this contract."

5. Likewise, Optime and LOWI have signed Annex III of the aforementioned Alternative Channel Agency Contract, which regulates the LOWI Personal Data Processing Agreement, where it is included in its...

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Clause 6 (use of subprocessors) that Optime, as the data processor, must transfer to all subprocessors it employs for the provision of the service the obligations and terms agreed upon with LOWI.

6. In conclusion, neither Optime nor any of its subcontractors were authorized to make calls for telemarketing or tele-sales purposes on behalf of LOWI, neither on the date the call that gives rise to this Initiation Agreement for sanctioning procedure was made, nor at any other time. Therefore, Vodafone has been unable to identify the calling number assigned to Optime as one of the numbers executing commercial campaigns on its behalf, since it was not among the numbers of collaborators managing commercial campaigns.

EXPANDIA, as a subcontractor of Optime, when executing the call on September 6, 2022, to Mr. B.B.B., acted on its own account by not following the guidelines set by LOWI, thus breaching the provisions of the contract between my represented party and Optime. Therefore, EXPANDIA acted, following what is indicated in Article 28.10 of the GDPR, as the data controller regarding the call made at its own risk, as it was not part of any activity or process commissioned or authorized by LOWI.

It is also deemed appropriate to highlight that my represented party has cooperated at all times with the investigative work carried out by this Agency, providing at all times the information that had been requested of it. Based on the above, the following conclusions can be drawn:

1) Vodafone has not infringed what is stated in Article 48.1b) of the LGT, in Article 21 of the GDPR, nor in Article 23.4 of the LOPDGDD in relation to the complaint filed by Mr. B.B.B. This point is developed in the First Allegation.

2) EXPANDIA, subcontractor of Optime, as well as Optime, breached the guidelines set by Vodafone by making a call on behalf of Vodafone for which they were not authorized.

Therefore, EXPANDIA or Optime, if it acted on its own, by determining the purposes and means used for making the call, acted as independent data controllers.

In light of this breach, Optime ceased to work with EXPANDIA due to malpractice in October 2022.

Second Allegation.

3) The Agency has not requested the contract by which Vodafone authorizes Optime to make

commercial calls on its behalf, this information being necessary evidence to determine Vodafone's culpability. For the preparation of this Initiation Agreement, only the information provided by EXPANDIA was taken into account. Third Allegation.

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4) Alternatively, in the event that the Agency determines that there has been an infringement and a sanction must be imposed on Vodafone, the mitigating circumstances of the case must be taken into account. Allegation Four.

FIRST.- Vodafone has not infringed Article 48.1(b) of the LGT nor Article 21 of the GDPR in relation to the complaint filed by Mr. B.B.B.

I. The infringement attributed by the Agency in the Initiation Agreement

The sanction that the Agency intends to impose on Vodafone arises from the alleged infringement of Article 48.1(b) of the LGT, which is typified in Article 21 of the GDPR, as well as in Article 23.4 of the LOPDGDD and, as a minor infringement, in Article 78.1 of the LGT.

The Agency understands that, by indicating that EXPANDIA was the owner of the number from which the call subject to Mr. B.B.B.'s complaint was made, ***PHONE.4, and by confirming that they made that call as a sub-contractor of Optime, representative of LOWI, and that EXPANDIA, with the apparent authorization of LOWI, had made a call for commercial purposes in its name to the complainant's number, ***PHONE.1, despite the fact that he had opposed receiving such calls.

II. Vodafone has not violated the right of opposition exercised by the complainant to receive commercial communications.

EXPANDIA, in its allegations submitted to the AEPD, states that it made the call on September 6, 2022, and provides the Collaboration Agreement between EXPANDIA and Optime, which indicates that Optime is a company dedicated to the marketing of LOWI products and services. However, EXPANDIA was not authorized to make commercial calls on behalf of Vodafone, as stated in the Agency Agreement signed between Vodafone and Optime, which was not requested from my client. In this regard, it is relevant to highlight that, as of the date of the call, Vodafone and Optime had a valid contract regulating their relationship, which expressly prohibits, under no circumstances, the possibility of conducting telemarketing or tele-scheduling activities by Optime or its collaborators.

Below, a screenshot of the referred clause is provided, with the text underlined to highlight the mentioned obligation.

Optime, not being authorized to carry out tele-scheduling activities, is not part of the call routing system that ensures the filtering of the complainant's number against the official advertising exclusion files and Vodafone's internal files. As a result of the situation presented, Vodafone could not know that the number ***PHONE.4 was being used by Optime to conduct commercial campaigns on behalf of Vodafone, as it is not an authorized number nor is it enabled to carry out any type of telephone activity, as stated in the contract, so that activity cannot be considered to have been carried out on behalf of Vodafone.

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A burofax will be issued to Optime reminding them of their obligations as a collaborator of LOWI, particularly emphasizing that their entity is only authorized to carry out recruitment activities in person at the points of sale of their third-party collaborators, and that telemarketing or any other form of non-in-person sales is expressly excluded for both Optime and their collaborators.

Considering all of the above, when my client informs the Agency that they do not recognize the number ***TELÉFONO.4 as belonging to Vodafone or its collaborators, they provide the correct information, having not violated the claimant's right to object to receiving commercial communications on behalf of

LOWI, as they were unaware that this number was being used for telemarketing activities.

Due to Optime's lack of cooperation with this investigation, the AEPD accepted the statements and evidence provided by EXPANDIA without requesting additional information from my client or verifying the terms and conditions governing the contractual relationship between Optime and Vodafone, proceeding directly to open the present Initiation Agreement against Vodafone.

SECOND.- EXPANDIA violated the guidelines set by Vodafone by engaging in telemarketing activities. By acting on their own behalf, determining the purposes and means for making the call, EXPANDIA becomes responsible for the processing. Optime has not worked with EXPANDIA due to malpractice since October 2022.

As detailed in the first statement of the present allegations, EXPANDIA, by making the call to the Claimant's number, violated Vodafone's guidelines by being unable to engage in telemarketing on behalf of LOWI under any circumstances. That is to say, EXPANDIA independently determined the purposes and means for carrying out that call, relying on a telemarketing or tele-scheduling activity that was not authorized by Vodafone, thus becoming responsible for the processing of the call and violating data protection regulations by infringing the right not to receive commercial communications.

This is stipulated in Article 28.10 of the GDPR: "Without prejudice to the provisions of Articles 82, 83, and 84, if a processor infringes this Regulation by determining the purposes and means of the processing, they shall be considered responsible for the processing in relation to that processing."

Consequently, Vodafone did not violate the provisions of Article 48.1b) of the LGT, nor Article 21 of the GDPR, nor Article 23.4 of the LOPDGDD, and cannot be held accountable for the lack of diligence of EXPANDIA, which acted without following the stipulations of the contract signed with my client.

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It is also relevant to highlight that EXPANDIA, as a sub-collaborator of Optime, has the obligation to follow this instruction, as Optime, as the data processor, must, as stated in the Personal Data Processing Agreement, included as Annex III to the aforementioned contract, transfer the obligations imposed by Vodafone to all sub-processors they employ to achieve the object of the contract. This obligation is included in clause 6.1.4 of that agreement, of which a screenshot with the text highlighted is provided.

Furthermore, this obligation of transfer by Optime is included in Annex IV of that contract, where the Certificate of Transfer of Obligations in Data Protection is recorded, which was agreed upon by this entity. A screenshot of the referred clause is provided below.

Similarly, it should be noted that Optime, due to the lack of compliance by EXPANDIA, has not worked with the mentioned sub-collaborator since October 2022. That is to say, just a few weeks after making the call on September 6, 2022, the accesses enabled for EXPANDIA to Vodafone's internal systems were blocked, preventing them from carrying out any activities on their behalf since that date.

THIRD.- The Agency did not request additional information from my client regarding the terms and conditions governing the relationship between Optime and Vodafone. This Agency only considered the information provided by EXPANDIA.

It is noteworthy that my client has, at all times, provided this Agency with all the requested information, demonstrating their great willingness to cooperate and their readiness to facilitate, as much as possible, the Agency's investigative work regarding this file. However, my client did not have the opportunity to provide this Agency with the agreement that governed the relationship between Optime and Vodafone, nor to explain that the sub-collaborator, EXPANDIA, ceased to be a sub-collaborator of Vodafone due to malpractice just a few weeks after the call that led to this Initiation Agreement and for which they were not authorized.

For all these reasons, it can be concluded that this Agreement has been based on partial information by not taking into account all the facts submitted in these allegations, which are extremely relevant for determining culpability in the sanctioning file, as well as verifying that EXPANDIA, acting as the data

processor, made the call in question without the authorization of either Optime or Vodafone, are responsible for violating Article 48.1 b) of the LGT, while simultaneously infringing the Claimant's right to receive commercial calls.

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FOURTH.- Alternatively, in the event that the Agency understands that there has been an infringement and that a sanction must be imposed on Vodafone, the following mitigating circumstance must be taken into account.

Alternatively, in the event that the Agency understands that there has indeed been an infringement and that the imposition of a sanction on Vodafone is appropriate, my client considers that it should be reduced in light of the following mitigating factors:

i. Absence of intent or negligence in the infringement (Article 83.2 b) of the GDPR). My client had no intent whatsoever nor is it attributable to them that the infringement of Article 48.1. b) of the LGT occurred. This is evidenced by the reasons previously stated and given that my client was unaware that the numbering, which is the subject of this Initiation Agreement, was being used for telemarketing or tele-appointment activities by EXPANDIA, a sub-contractor of Optime, and considering that both parties, EXPANDIA and Optime, are expressly prohibited from carrying out tele-appointment activities on behalf of Vodafone. Furthermore, Optime ceased collaboration with EXPANDIA just a few weeks after the call was made. On the other hand, a burofax will be sent to Optime reminding them of their obligations.

ii. The degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement (Article 83.2 f) of the GDPR). My client has provided all requested information at all times, despite not having had the opportunity to submit the contract that regulates the relationship between their entity and Optime, in which Vodafone expressly prohibits them from conducting telemarketing campaigns.

iii. Adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42 (Article 83.2 j) of the GDPR). Vodafone, in January 2023, adhered to the Code of Conduct for Data Processing in Advertising Activities promoted by Autocontrol and the AEPD, thus demonstrating its willingness to effectively resolve any issues or requests that may arise regarding data protection related to my client's advertising activities in the most beneficial manner for the interested party. In light of all the above,

I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION to consider this document and all accompanying documents as submitted and, accordingly, to acknowledge the statements contained herein and, after the appropriate procedures, agree: 1) The dismissal of the proceedings with the consequent filing of the actions, for no infringement having been committed as alleged. 2)

Alternatively, that if a sanction is imposed, it should be set at the minimum amount in light of the mitigating circumstances indicated in this document.

NINTH: On 29/01/24, a resolution proposal was made for the Director of the AEPD to proceed with the FILING of the present sanctioning procedure against the entity, VODAFONE ENABLER ESPAÑA S.L. with CIF: B82896119, in accordance with the provisions of Article 63.3 of the LPACAP, for the alleged infringement of Article 48.1.b) of the LGT, in force when the events occurred on 06/09/22, in relation to Article 23.4 of the LOPDGDD.

The resolution proposal, which was notified on the same day 29/01/24, by electronic means, was based on the following points:

- Vodafone has imposed by contract on the entity OPTIME 2016, the prohibition of commercial promotion and the conclusion of acts and operations of commerce of LOWI products, which are carried out in any way other than in person, that is, the prohibition of commercial actions via telephone, electronic communication, etc.

- Furthermore, in the signed contract, OPTIME 2016 is obliged to ensure that the sub-agents contracted by it must be previously authorized by Vodafone. Authorization that neither the entity

EXPANDIA nor the entity OPTIME 2016 have presented to this Agency.

There is no record that allegations have been submitted regarding the resolution proposal.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven,

PROVEN FACTS

First: The complaining party provides certification of being included in the Robinson List since 28/08/19 for the line receiving commercial calls.

A screenshot is provided that certifies the receipt of several commercial calls, including one that certifies the receipt on 06/09/22 at 20:21 hours, from the calling line, ***PHONE.4, with the operator of the originating number of the commercial call being the entity EXPANDIA DESARROLLO IA EXPANDIA SL.

Second: Upon requesting information from the entity EXPANDIA, it states that on 06/09/22, it made a telephone call from the phone ***PHONE.4 to the complainant's phone for commercial purposes for the sale of telephony, although it does not indicate whether it checked or not that the complainant was registered in the official Robinson list of ADigital and/or in Vodafone's internal Robinson list.

The collaboration agreement between EXPANDIA and the company OPTIME 2016, S.L. is provided, where it can be read:

"SECTION I – Introduction of the Company I.I.- THE COMPANY: Optime 2016 S.L is a company dedicated to the marketing of products and services of the operator LOWI, as the exclusive wholesaler of the brand appointed by the operator in the provinces of Cáceres, Badajoz, Sevilla, Córdoba, and Huelva.

(...).

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SECTION II – Collaborator

II.I – MISSION: The collaborator (EXPANDIA) is the point of sale for marketing and the fundamental element of the LOWI project. Its main mission will be to sell LOWI products and services and achieve the monthly target set (...).

Third: Vodafone presents the collaboration contract signed on 29/08/22 with OPTIME 2016 (Agent), which was in force at the time of the commercial phone call to the claimant on 06/09/22, where, among other issues, it can be read:

"That VODAFONE intends to market its Services in Spanish territory, through the LOWI brand, via different commercial networks, including the face-to-face channel aimed at individual customers.

Both parties express their interest in having the AGENT carry out the activity subject to this contract either by itself or through sub-agents designated by the AGENT, who must be previously authorized by VODAFONE. These sub-agents must necessarily have physical points of sale.

SECOND. OBJECT OF THE CONTRACT

2.1 The object of this contract is the commercial promotion and the conclusion of acts and operations of commerce, in a face-to-face manner, regarding Services for Individual Customers and/or Business Customers of VODAFONE by the AGENT or through sub-agents through the activity of attracting Customers to the Lowi brand under the terms expressly agreed upon in this contract and its annexes. The commercial promotion and the conclusion of acts and operations of commerce carried out by the AGENT and/or its sub-agents in any manner other than face-to-face (telephone, telemarketing, electronic communication, others (...)) are expressly excluded from the scope of this contract.

SIXTH: (...)

6.8. The AGENT must not violate the current legislation on personal data protection, and must act diligently at all times in the exercise of its activity in relation to the processing of personal data. Thus, it declares that it is aware of the applicable obligations in this matter and accepts the obligations established in Annex III and Annex IV of this contract regarding the processing of personal data, keeping VODAFONE harmless from any harm caused by the breach of data protection regulations

(...).

LEGAL GROUNDS

I-

Competence

According to the provisions of Article 114.1.b) of the LGTEL and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II.-

Summary of the Facts

In the case at hand, the claimant states in their complaint that they receive commercial telephone calls, where the salesperson offers LOWI services and accompanies, along with the complaint, a Certificate that proves the registration in the Robinson List of the receiving line ***PHONE.1 since 28/08/19 and proof of the telephone calls received from the number ***PHONE.2 on 10/08/22; from the number ***PHONE.3 on 29/08/22; and from the number ***PHONE.4 on 06/09/22.

The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, having learned that the complained numbers, ***PHONE.2 and ***PHONE.5, were assigned to the entity COMERCIALIZADORA SYR CENTER 2020, C.A., based in Venezuela, from which this Agency could not obtain any response, and regarding the complained number ***PHONE.4, it was verified that it was assigned to the entity EXPANDIA DESARROLLO IA EXPANDIA SL.

According to Vodafone, in response to the request made by this Agency, the telephone numbers from which the commercial calls were made to the claimant were not listed in its database of numbers associated with the collaborators making solicitation calls on behalf of Vodafone (LOWI).

However, the entity EXPANDIA did acknowledge that on 06/09/22, it made a telephone call from the phone ***PHONE.4 to the claimant, around 19:00 and 21:00 for commercial purposes related to the sale of telephony, although it does not indicate whether it verified or not that the claimant was registered in the official Robinson list of ADigital and/or in the internal Robinson list of Vodafone.

Along with the document where the entity EXPANDIA acknowledges the commercial telephone call to the claimant, it attaches the collaboration contract it has signed with the entity OPTIME 2016, S.L., where, among its provisions, it can be read:

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“SECTION I – Introduction of the Company

I.I.- THE COMPANY: Optime 2016 S.L. is a company dedicated to the marketing of products and services of the operator LOWI, as the exclusive wholesaler of the brand appointed by the operator in the provinces of Cáceres, Badajoz, Sevilla, Córdoba, and Huelva.

(...).

SECTION II – Collaborator

II.I – MISSION: The collaborator (EXPANDIA) is the point of sale for marketing and the fundamental element of the LOWI project. Its main mission will be to make sales of LOWI products and services and achieve the monthly target set (...) .

- COLLABORATOR OR POINT OF SALE DATA:

Name: A.A.A.

CIF/NIF: B90314808

Address: STREET ***ADDRESS.1.

Commercial name: EXPANDIA SL

- WHOLESALE POINT OF SALE DATA

Name: Optime 2016 S.L.

CIF/NIF: B90280546

Address: ***ADDRESS.2

Commercial name: Optime

Representative: C.C.C.

NIF: ***NIF.1

A sanctioning file has been opened against Vodafone for the commercial telephone call to the claimant without having been admitted or requested beforehand. This entity states in the allegations presented regarding the initiation of the file, among other issues, that Optime and Vodafone had a Channel Alternative Agency Contract, in force at the time of the commercial telephone call to the claimant, and that in this contract, in its second clause, it is established that Vodafone expressly prohibits the possibility of carrying out telemarketing or teleappointment activities by Optime and that, therefore, neither Optime nor any of its sub-collaborators were authorized to make calls for teleappointment or telemarketing purposes on behalf of Lowi. Consequently, Vodafone could not identify the calling number assigned to Optime as one of the numbers executing commercial campaigns in its name, since it was not among the numbers of collaborators managing commercial campaigns.

Along with the allegations document, Vodafone presents the collaboration contract signed on 29/08/22 with OPTIME 2016 (Agent), in force at the time of the commercial telephone call to the claimant on 06/09/22, where, among other issues, it can be read:

"That VODAFONE intends to market its Services in Spanish territory, through the LOWI brand, by means of different commercial networks, including the face-to-face channel aimed at individual customers.

Both parties express their interest in having the AGENT carry out the activity subject to this contract by itself or through sub-agents designated by the AGENT, which must be previously authorized by VODAFONE. These sub-agents must necessarily have physical points of sale.

SECOND. OBJECT OF THE CONTRACT

2.1 The object of this contract is the commercial promotion and the conclusion of acts and operations of commerce, in a face-to-face manner, regarding the Services for Individual Customers and/or Business Customers of VODAFONE by the AGENT or through sub-agents through the activity of attracting Customers to the LOWI brand under the terms expressly agreed in this contract and its annexes.

The commercial promotion and the conclusion of acts and operations of commerce carried out by the AGENT and/or by its sub-agents in any manner other than face-to-face (telephone, telemarketing, electronic communication, others (...)) are expressly excluded from the scope of this contract.

SIXTH: (...)

6.8. The AGENT must not violate the current legislation on personal data protection, and must act diligently at all times in the exercise of its activity in relation to the processing of personal data. Thus, it declares to be aware of the applicable obligations in this matter and accepts the obligations established in Annex III and Annex IV of this contract regarding the processing of personal data, keeping VODAFONE harmless from any damage caused by the breach of data protection regulations (...)."

From all of the above, it follows that Vodafone has imposed on the entity OPTIME 2016, by contract, the prohibition of commercial promotion and the conclusion of acts and operations of commerce of LOWI products, which are carried out in any manner other than face-to-face, that is, the prohibition of

commercial actions via telephone, electronic communication, etc.

Furthermore, in the signed contract, OPTIME 2016 is obligated to ensure that the sub-agents contracted by it must be previously authorized by Vodafone. Authorization that neither the entity EXPANDIA nor the entity OPTIME 2016 have presented to this Agency.

Therefore, in accordance with the evidence available, after the analysis carried out on the documents provided in this process by the different parties, it can be confirmed that the entity OPTIME 2016, by subcontracting with the collaborator EXPANDIA the point of sale for marketing LOWI products and services without the prior authorization of Vodafone, has breached the contract signed with Vodafone prohibiting the former from making non-face-to-face contracts, so there is insufficient evidence of the violation of the LGT by this entity.

Therefore, in light of the above, it is:

RESOLVED:

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FIRST: TO FILE the present sanctioning procedure against the entity VODAFONE ENABLER ESPAÑA S.L. with CIF: B82896119 (VODAFONE ESPAÑA, S.A.U.), in accordance with the provisions of Article 63.3 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 48.1.b) of the LGT, in force when the events occurred on 06/09/22, in relation to Article 23.4 of the LOPDGDD.

SECOND: NOTIFY: the present resolution to the entity, VODAFONE ENABLER ESPAÑA S.L. with CIF: B82896119 (VODAFONE ESPAÑA, S.A.U.), and inform the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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